

Tentative Rulings for Department 403

Begin at the next page

(20)

Tentative Ruling

Re: ***Hedrington v. Woolman et al.***
Superior Court Case No. 25CECG01717

Hearing Date: July 23, 2026 (Dept. 403)

Motion: By Plaintiff to Vacate Order for Fee and Under CCP & 473(d)
& 473 (d) 2014 Judgment and Request for Evidentiary Hearing

Tentative Ruling:

To deny. (Code Civ. Proc., §§ 473, 1008.)

Explanation:

Though the motion is extremely vague and difficult to understand, it appears that plaintiff is seeking to vacate the order granting defendant William Woolman's Code of Civil Procedure section 425.16 special motion to strike the Complaint ("anti-SLAPP motion"). The anti-SLAPP motion was granted on 11/5/2025. Plaintiff filed the instant motion to vacate the order on 1/28/25. The basis for the motion to vacate appears to be that the anti-SLAPP motion was not timely filed under Code of Civil Procedure section 425.16, subdivision (f), which provides, "The special motion may be filed within 60 days of the service of the complaint or, in the court's discretion, at any later time upon terms it deems proper."

Plaintiff argued in opposition to the anti-SLAPP motion that the motion was untimely, and the court rejected this argument in the 11/5/2025 order, finding that the motion was timely filed. The issue has already been argued, considered, and ruled upon. Accordingly, this is simply an improper and untimely motion for reconsideration of the 11/5/2025 order.

A party may bring a motion to reconsider, and have a different order entered, if the motion is:

1. brought before the same judge that made the order;
2. made within 10 days after service upon the party of notice of the entry of the order;
3. based on new or different facts, circumstances, or law; and
4. made and decided before entry of judgment.

(Code Civ. Proc., § 1008, subd. (a), (b).)

The motion filed on 1/28/2026 is clearly untimely, filed well after 10 days of service of the order, and is denied for that reason. Furthermore, there is no showing of new or different facts, circumstances or law.

The motion is styled as a motion for relief under Code of Civil Procedure section 473, subdivision (d), which provides, "The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to

conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order." Plaintiff identifies no clerical mistake in any judgment, but instead seeks a new ruling on matters that have already been briefed and ruled upon. The motion is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** July 22, 2026.
(Judge's initials) (Date)